

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KARL WALTERS,

Plaintiff,

-against-

DETECTIVE TEARLE CONNELL, Shield No. 1053,
SERGEANT PEGEEN M. SILVA, Shield No. 12149,
POLICE OFFICER STEPHANE BERAUD, and
DETECTIVE DEAN ADAMS, Shield No. 7742, and
POLICE OFFICERS JOHN DOES #1-10,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
October 12, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE TEARLE CONNELL, Shield No. 1053, Narcotics Borough Brooklyn South
SERGEANT, PEGEEN M. SILVA, Shield No. 12149, Narcotics Borough Brooklyn South
POLICE OFFICER STEPHANE BERAUD, Narcotics Borough Brooklyn South\
DETECTIVE DEAN ADAMS, Shield No. 7742, PSA 2, 560 Sutter Avenue, Brooklyn, NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KARL WALTERS,

Plaintiff,

-against-

DETECTIVE TEARLE CONNELL, Shield No. 1053,
SERGEANT PEGEEN M. SILVA, Shield No. 12149,
POLICE OFFICER STEPHANE BERAUD, and
DETECTIVE DEAN ADAMS, Shield No. 7742, and
POLICE OFFICERS JOHN DOES #1-10,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff KARL WALTERS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on October 14, 2016 at approximately 6:00 am as plaintiff was lawfully present inside of 9720 Kings Highway, Apt. 310, Brooklyn, New York when defendants, acting under the color of state law, forcefully entered the apartment, unlawfully searched, and falsely arrested and imprisoned plaintiff. Thereafter, plaintiff was transported to the unlawfully strip searched at the 67th Precinct, maliciously prosecuted and denied the right to due process/ right to a fair trial by the defendant police officers when they maliciously initiated a criminal prosecution against plaintiff, without probable cause, and communicated false, misleading, and incomplete information to the District Attorney's Office about their factual basis for arresting plaintiff and charging him with crimes. Defendants signed a criminal court complaint containing the false allegations, which was used to initiate the criminal prosecution against plaintiff when he was arraigned in Criminal Court on October 15, 2016 at approximately 11:00 pm and charged with crimes the defendants lacked probable cause to accuse him of committing. Plaintiff was required to appear in Criminal Court on approximately 10 occasions before the criminal charges were dismissed and sealed in their entirety and terminated in plaintiff's favor on October 11, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested/ imprisoned, unlawfully strip searched maliciously prosecuted, and denied plaintiff the

right to due process/ a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KARL WALTERS is a resident of the state of New York.

3. Defendant DETECTIVE TEARLE CONNELL, Shield No. 1053, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE TEARLE CONNELL, Shield No. 1053, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

5. Defendant DETECTIVE TEARLE CONNELL, Shield No. 1053, is being sued in his individual and official capacity.

6. Defendant SERGEANT, PEGEEN M. SILVA, Shield No. 12149, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT, PEGEEN M. SILVA, Shield No. 12149, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

8. Defendant SERGEANT, PEGEEN M. SILVA, Shield No. 12149, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER STEPHANE BERAUD, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER STEPHANE BERAUD, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South.

11. Defendant POLICE OFFICER STEPHANE BERAUD, is being sued in his individual and official capacity.

12. Defendant DETECTIVE DEAN ADAMS, Shield No. 7742, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE DEAN ADAMS, Shield No. 7742, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South.

14. Defendant DETECTIVE DEAN ADAMS, Shield No. 7742, is being sued in his individual and official capacity.\

15. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants Police Officers John Does # 1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. By way of background, plaintiff, a college student, moved into the apartment located at 9720 Kings Highway, Apt. 310, Brooklyn, New York on October 12, 2016, two days before he was falsely arrested by defendants during the underlying incident in this case.

22. Plaintiff rented one-room of the apartment from the lease holder of then apartment, and the lease holder of the apartment used the other room of the apartment as her bedroom.

23. Plaintiff did not witness any unusual incidents occur at the apartment during the first two days he lived there.

24. On October 14, 2016 at approximately 6:00 am plaintiff was lawfully present inside the room he began renting two days earlier located inside of 9720 Kings Highway, Apt.

310, Brooklyn, New York when defendants forcefully entered the apartment by breaking through the front door of the apartment.

25. The defendants were looking for an individual named “L. Dupree” whom the defendants allege sold drugs to an Undercover Police Officer on three separate dates from Apt. 310 on dates prior to when plaintiff moved into the bedroom located in the apartment.

26. Prior to raiding Apt. 310 on October 14, 2016, defendants determined that “L. Dupree” lived in the apartment and defendants identified “L. Dupree” as the “target” when they raided the apartment on October 14, 2016.

27. . However, to the extent “L. Dupree” ever resided in Apt. 310, he moved out of the apartment prior to the date when plaintiff moved into the apartment.

28. Additionally, plaintiff does not know anyone named “L. Dupree.”

29. The defendants allege that they raided Apt. 310 on October 14, 2016 because defendants believed the apartment was being used by “L Dupree” to store and sell crack/cocaine.

30. Plaintiff moved Apt. 310 on October 12, 2016, two days before the defendants raided the apartment, and plaintiff did not live in the apartment at the time defendants allegedly conducted controlled narcotics buys from “L. Dupree” at the apartment.

31. Upon entering Apt. 310 on October 14, 2016 the defendants immediately handcuffed and falsely arrested/ imprisoned plaintiff, unlawfully searched plaintiff and searched the entire apartment.

32. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff’s person or from plaintiff’s possession custody or control.

33. Nevertheless, defendants falsely arrested plaintiff without probable cause or any legal justification.

34. Defendants allege that they recovered drug paraphernalia containing drug residue from lease holder of the apartment’s bedroom where the lease holder and her boyfriend were present at the time the defendants raided the apartment.

35. Plaintiff was not present in the bedroom of the leaseholder at the time the defendants raided the apartment, as he was present in the room he began renting two days earlier. The defendants did not possess an objective factual basis to allege that plaintiff possessed or had constructive possession over any illegal substances the defendants allegedly recovered from the leaseholder of the apartment’s bedroom.

36. Although the defendants lacked probable cause to arrest plaintiff, they unlawfully handcuffed him, falsely arrested him, and transported him to the 67th Precinct in a

dangerous and insecure manner with several other prisoners in a windowless police van causing plaintiff to suffer extreme emotional distress.

37. Plaintiff was handcuffed during transport to the precinct in the van and had no way to brace himself from being tossed around the van when the van stopped short because he was not secured, or seat belted into a seat.

38. Plaintiff was transported to the 67th Precinct where he was unlawfully strip searched by defendants, without probable cause to believe plaintiff secreted an illegal substance underneath his clothing..

39. The unlawful strip search caused plaintiff to suffer extreme emotional distress because the procedure was extremely embarrassing and emasculating.

40. Defendants unlawfully searched, fingerprinted, photographed and detained plaintiff in a holding cell for many hours.

41. Defendants transported Karl Walters to Kings County Central Booking on October 15, 2016 where he was unlawfully detained until 11:00 pm on October 15, 2016 at which time plaintiff was arraigned in Kings County Criminal Court.

42. Prior to arraignment defendants provided false, misleading and incomplete allegations and evidence to the District Attorney's Office to establish their basis for arresting plaintiff and charging him with crimes, and said false, misleading and incomplete evidence was the primary basis for falsely charging plaintiff with crimes and for maliciously prosecuting him without probable cause.

43. Defendants falsely charged plaintiff with Criminal Possession of a Controlled Substance in the Seventh Degree even though defendants lacked an objective factual basis to accuse him of committing any crime.

44. Plaintiff was released from released on his own recognizance at arraignment.

45. Plaintiff appeared in Criminal Court on approximately 10 occasions before the criminal prosecution terminated in plaintiff's favor when the Court dismissed and sealed all criminal charges brought against plaintiff in their entirety on October 11, 2017, after plaintiff endured a criminal prosecution that lasted for approximately 1 year.

46. Plaintiff missed approximately 13 days of classes at Berkley College where he was enrolled as a full-time student at the time of the underlying incident, and his grades suffered because his attendance was poor, because of the false arrest and malicious prosecution of plaintiff by defendants.

47. Additionally, the false arrest and malicious prosecution of plaintiff caused plaintiff to miss 4 days from work at his job with Ashley Furniture.

48. The false arrest and malicious prosecution of plaintiff by defendants caused plaintiff to become embarrassed and paranoid. Plaintiff was afraid to be in his apartment, and he believed that the other residents in the building looked at him weird because they saw him get arrested and did not know that he was innocent and that the criminal charges were dismissed.

49. The false arrest, false imprisonment, unlawful search, unlawful strip search, malicious prosecution, and denial of fair trial/ denial of due process caused plaintiff to sustain severe physical, psychological and emotional trauma.

50. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent and/or stop the false arrest, false imprisonment, unlawful search, unlawful strip search, malicious prosecution, and denial of fair trial/ denial of due process against plaintiff.

51. The false arrest, false imprisonment, unlawful search, unlawful strip search, malicious prosecution, and denial of fair trial/ denial of due process against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

52. The unlawful search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to constitutional, physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search and Strip Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants, underneath his clothing without probable cause, and the search of plaintiff without his clothing at the 67th Precinct employed by defendants without probable cause to believe plaintiff secreted an illegal substance underneath his clothing herein terminated plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search and/or strip search plaintiff.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Constitution of the United States.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

68. Defendants commenced and continued a criminal proceeding against plaintiff.

69. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

70. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

71. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment, and Fourteenth Amendment Rights

Denial of Right to Fair Trial

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants, individually and collectively, manufactured false evidence and forwarded this false evidence to and/or withheld evidence from prosecutors in the Kings County District Attorney's Office.

75. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

77. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the Constitution of the United States.

78. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, missed school, and deprivation of his constitutional rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

85. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Karl Walters demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 12, 2019

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 12, 2019

/s/

DAVID M. HAZAN